

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BENJAMIN LIZARDI,

Plaintiff(s),

-against-

THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE
DEPARTMENT and
P.O. ELEODORO MATA,

Defendant(s).
-----X

Index No.:

Date of Filing:

Plaintiff(s) Designates

New York County as the

Place of Trial

Place of Accident

SUMMONS WITH NOTICE

Plaintiff's resides at

422 West 57th Street, Apt. 1

County of New York

To the above named Defendant(s):

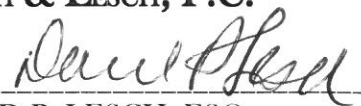
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein

Dated: Bronx, New York

June 16, 2016

Yours, etc.

LESCH & LESCH, P.C.

By: 

DAVID P. LESCH, ESQ.

Attorneys for Plaintiff(s)

860 Grand Concourse, Suite 2M

Bronx, New York 10451

(718) 292-1131

Defendant(s)' Address:

THE CITY OF NEW YORK
100 Church Street,
New York, New York 10007
(212) 356-1000

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, New York 10007
(646) 610-5000

ELEODORO MATA
C/O New York City Police Department - 26th Precinct
520 West 126th Street,
New York, New York 10027

NOTICE: The nature of this action is: Personal Injury

The relief sought is: As demanded in complaint

Upon your failure to appear, judgment will be taken against you by default for the sum as demanded in complaint with interest from February 25, 2016, and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BENJAMIN LIZARDI,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT and P.O.
ELEODORO MATA,

Defendant(s).

-----X

VERIFIED COMPLAINT

Plaintiff(s) **BENJAMIN LIZARDI**, complaining of the Defendant(s), by his attorneys,
LESCH & LESCH, P.C., sets forth the following upon information and belief:

1. That at all times herein mentioned, Plaintiff **BENJAMIN LIZARDI** was and still is a resident of the County of New York, City and State of New York.
2. That this action falls within one or more of the exemptions set forth in CPLR §1602.
3. That upon information and belief, at all times herein mentioned, Defendant(s), **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That heretofore and prior to the commencement of this action, and within ninety (90) days after the claim arose, Plaintiff(s) duly served upon the Defendant(s), **THE CITY OF NEW YORK**, a notice in writing, duly sworn to and verified, setting forth the following: name and post office address of the claimant; the nature of the claim; the time when, the place where and the manner in which the claim arose; the items of damage and injuries as far as then ascertained.

5. That the said Defendant(s) **THE CITY OF NEW YORK**, has wholly neglected and refused to make an adjustment and payment of said claim, and more than ninety (90) days has elapsed since the claim arose.

6. A 50-H Hearing was held on June 8th, 2016 and no physical was requested.

7. That on or about February 25, 2016, between 2:00 p.m. to 3:00 p.m. at the hallway of the Department of Motor Vehicles located in Harlem on the intersection of 125th Street and Third Avenue. The incident occurred on the 3rd Floor outside the Traffic Courtroom, Plaintiff, **BENJAMIN LIZARDI**, was physically and verbally assaulted by an agent, servant and/or employee of the Defendant(s), **THE CITY OF NEW YORK**, and Defendant(s) **THE NEW YORK CITY POLICE DEPARTMENT** causing serious personal injuries.

8. That this action is commenced within one (1) year from the date of the assault.

9. That upon information and belief, at all times herein mentioned, Defendant(s), **THE NEW YORK CITY POLICE DEPARTMENT**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. That upon information and belief, at all times herein mentioned, the Defendant(s) **THE CITY OF NEW YORK**, utilized the **NEW YORK CITY POLICE DEPARTMENT** to operate, coordinate, supervise and manage its Police Department, its agents, servants and/or employees.

11. That upon information and belief, said agent, servant and/or employee was a police officer of the Defendant(s) **NEW YORK CITY POLICE DEPARTMENT** of the Defendant(s) **CITY OF NEW YORK**, located or assigned to the 26th Precinct of the New York Police Department, located at 520 West 126th Street, City of New York and State of New York, herein to be referred to as **P.O. ELEODORO MATA**.

12. That when said assault took place, Defendant(s) **P.O. ELEODORO MATA** was acting in the scope of their employment, as well as individually.

13. That when said assault took place, Plaintiff(s), **BENJAMIN LIZARDI** was conducting himself in a quiet and orderly manner and the assault took place without cause or provocation on the party of Plaintiff(s) herein.

14. That on the above-mentioned date, time and place, the Defendant(s), by their agent, servant, and/or employee, was a police officers of the Police Department of the City of New York, wrongfully, willfully and maliciously and without right, warrant or pretense of legal process physically and verbally assaulted Plaintiff(s) **BENJAMIN LIZARDI**, causing serious personal injuries.

15. That as a result of the foregoing, Plaintiff(s) sustained serious injury in and to various parts of his body and limbs; was rendered sick, sore, lame and disabled, and upon information and belief, all of said injuries and disabilities are permanent; was compelled to seek medical aid and attention in an endeavor to cure and alleviate said injury; was compelled to expend a certain sum of money for said medical aid and attention; and was confined to bed and home for a long period of time.

16. That the amount of damages sustained by Plaintiff(s) against the Defendant(s) exceeds the jurisdictional limits of this Court.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST DEFENDANT(S) THE CITY OF NEW YORK

17. Plaintiff(s) **BENJAMIN LIZARDI**, repeats and reiterates each and every allegation of the paragraph of this Complaint numbers "1" through "16," all inclusive with the same force and effect as though fully set forth at length herein.

18. That the occurrence and resultant injuries to plaintiff was due to the carelessness, recklessness, and negligence of the Defendant(s) **THE CITY OF NEW YORK**, its agents, servants, and/or employees in the management, supervision, hiring, employing, and control of its employee, Defendant(s), **P.O. ELEODORO MATA**, of the New York City Police Department – 26th Precinct, without contributory negligence on Plaintiff's part.

19. That as a result of the foregoing, Plaintiff(s) sustained serious injuries in and to various parts of his body and limbs; was rendered sick, sore, lame and disabled, and upon information and belief, all of said injuries and disabilities are permanent; was compelled to seek medical aid and attention in an endeavor to cure and alleviate said injury; was compelled to expend a certain sum of money for said medical aid and attention; and was confined to bed and home for a long period of time.

20. That the amount of damages sustained by plaintiff against the Defendant(s), **THE CITY OF NEW YORK**, exceeds the jurisdictional limits of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANT(S) THE
NEW YORK CITY POLICE DEPARTMENT

21. Plaintiff(s), **BENJAMIN LIZARDI** repeats and reiterates each and every allegation of the paragraph of this Complaint number "1" through "20" all inclusive with the same force and effect as though fully set forth at length herein.

22. That the occurrence and resultant injuries to Plaintiff(s) was due to the carelessness, recklessness, and negligence of the Defendant(s) **THE NEW YORK CITY POLICE DEPARTMENT**, its agents, servants, and/or employees in the management, supervision, hiring, employing, and control of its employee, Defendant(s), **P.O. ELEODORO MATA**, of the New York City Police Department – 26th Precinct, without contributory negligence on Plaintiff's part.

23. That as a result of the foregoing, Plaintiff(s) sustained serious injuries in and to various parts of his body and limbs; was rendered sick, sore, lame and disabled, and upon

information and belief, all of said injuries and disabilities are permanent; was compelled to seek medical aid and attention in an endeavor to cure and alleviate said injury; was compelled to expend a certain sum of money for said medical aid and attention; and was confined to bed and home for a long period of time.

24. That the amount of damages sustained by plaintiff against the Defendant(s), **THE NEW YORK CITY POLICE DEPARTMENT**, exceeds the jurisdictional limits of this Court.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANT(S) P.O. ELEODORO MATA**

25. Plaintiff(s), **BENJAMIN LIZARDI** repeats and reiterates each and every allegation of the paragraph of this Complaint number "1" through "24" all inclusive with the same force and effect as though fully set forth at length herein.

26. That on the above-mentioned date, time and place, the Defendant(s), **P.O. ELEODORO MATA**, was a police officers of the Police Department of the City of New York, who wrongfully, willfully and maliciously and without right, warrant or pretense of legal process physically and verbally assaulted Plaintiff(s) **BENJAMIN LIZARDI**, causing serious personal injuries.

27. That the amount of damages sustained by Plaintiff(s) against the Defendant(s), exceeds the jurisdictional limits of this Court.

28. That as a result of the foregoing, this Plaintiff(s) seeks punitive damage against the Defendant(s) **P.O. ELEODORO MATA** in the sum of \$5,000,000.00.

WHEREFORE, Plaintiff(s) **BENJAMIN LIZARDI** demands judgment against the Defendant(s), for the First, Second, and Third causes of action in such amount which will fairly compensate the Plaintiff(s) for injuries sustained on February 25, 2016 including punitive damages, and further demands judgment against the Defendant(s), **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and P.O. ELEODORO MATA** in the first,

second and third causes of action in the sum of \$5,000,000.00 plus interests, costs and disbursements of this action from February 26, 2016.

Dated: Bronx, New York
June 16, 2016

Yours, etc.

LESCH & LESCH, P.C.

By: _____



DAVID P. LESCH, ESQ.

Attorneys for Plaintiff(s)

860 Grand Concourse, Suite 2M

Bronx, New York 10451

(718) 292-1131

VERIFICATION

STATE OF NEW YORK)

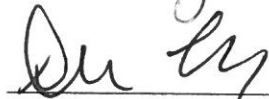
ss:

COUNTY OF)

being duly sworn, depose and say that they are the plaintiffs in the within action, that they have read the foregoing **SUMMONS and VERIFIED COMPLAINT** and know the contents thereof; that the same is true to their knowledge, except as to the matters therein stated to be based on information and belief, and that as to those matters, they believe them to be true.



Sworn to before me this
16 day of June, 2016



NOTARY PUBLIC



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BENJAMIN LIZARDI,

Index No.:

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-against-

THE CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT and POLICE OFFICER
ELEODORO MATA,

Defendant(s).

SUMMONS & COMPLAINT

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